



CHAPTER xliii.

An Act to confirm a Provisional Order of the Minister of Health relating to Bradford. A.D. 1930.
[20th March 1930.]

WHEREAS under the provisions of the Local Government Act 1888 the Minister of Health has made a provisional order which needs confirmation by Parliament : 51 & 52 Vict. c. 41.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order of the Minister of Health which as amended is set out in the schedule to this Act is hereby confirmed and shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Bradford Extension) Act 1930. Short title.

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SCHEDULE.

CITY OF BRADFORD.

*Bradford
(Extension)
Order.*

*Provisional Order made in pursuance of the Local
Government Act 1888 for the extension of a County
Borough.*

WHEREAS by virtue of section 54 of the Local Government Act 1888 the Minister of Health subject to the observance of the conditions imposed by section 2 of the Local Government (County Boroughs and Adjustments) Act 1926 may make a provisional order for altering the boundary of a county borough;

And whereas the city of Bradford is a county borough within the meaning of the Local Government Act 1888 and is for the purposes of that Act situate in the county of the West Riding of Yorkshire and the inhabitants are a body corporate by the name of the lord mayor aldermen and citizens of the City of Bradford and act by the council of the City and the City for the purpose of the election of councillors is divided into twenty-one wards;

And whereas the City comprises the township of Bradford (for which a separate board of guardians has been constituted) and the townships of Eccleshill North Bierley Tong and Wike and the parishes of Idle and Thornton in the North Bierley union;

And whereas the City has a separate court of quarter sessions recorder stipendiary magistrate commission of the peace police force and coroner;

And whereas the parliamentary borough of Bradford is co-extensive with the City;

And whereas the urban district of Clayton in the county of the West Riding of Yorkshire immediately adjoins the City of Bradford and is co-extensive with the parish of Clayton in the North Bierley union;

And whereas the conditions imposed by section 2 of the Local Government (County Boroughs and Adjustments) Act 1926 have been complied with;

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Now therefore the Minister of Health in pursuance of the powers given to him by sections 54 and 59 of the Local Government Act 1888 and of all other powers enabling him in that behalf hereby orders as follows :—

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—
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PART I.

PRELIMINARY.

1. This order may be cited as the Bradford (Extension) Order 1929. Short title.
2. In this order unless the context otherwise requires— Interpre-
tation.
 - “Existing” means existing immediately before the first day of April nineteen hundred and thirty;
 - “The Act of 1888” and “the Act of 1894” mean respectively the Local Government Act 1888 and the Local Government Act 1894;
 - “The added area” means the urban district of Clayton which by this order is added to the existing city of Bradford;
 - “The appointed day” means the first day of April nineteen hundred and thirty;
 - “The City” means the existing city of Bradford as extended by this order;
 - “The Clayton Council” means the urban district council of Clayton;
 - “The Clayton District” means the urban district of Clayton;
 - “The Corporation” means as the context requires the lord mayor aldermen and citizens of the existing City or of the City acting by the council;
 - “The County” and “the County Council” mean respectively the administrative county of the West Riding of Yorkshire and the county council of that county;
 - “The maps” means the duplicate maps marked “Map showing the area added to the City of Bradford by the Bradford (Extension) Order 1929” and sealed with the official seal of the Minister;
 - “The Minister” means the Minister of Health;
 - “The Municipal Corporations Acts” means the Municipal Corporations Act 1882 and the Acts amending and extending that Act and the Borough Councillors (Alteration of Number) Act 1925.
3. Where the day on which anything by this order required to be done falls on a Sunday that thing shall be done on the following day. Provision as
to Sunday.

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Commence-
ment of
order.

4. Save as otherwise expressly provided this order shall come into operation on the first day of April nineteen hundred and thirty :

Provided that for the purposes of—

- (a) the alteration or re-arrangement of any register of electors made under the Representation of the People Acts ;
- (b) the formation of the Clayton ward of the City and all proceedings preliminary or relating to any election to be held in nineteen hundred and thirty for any area affected by this order ; and
- (c) the alteration of valuation lists to take effect on the appointed day or the preparation of any estimate of the produce of a penny rate or precept to be made in respect of the financial year commencing on the appointed day ;

this order shall operate from the date of the Act of Parliament confirming it.

Application
of Local
Government
Act 1929.

5.—(1) For the purposes of parts I. to III. and parts VI. to VIII. of the Local Government Act 1929 the alteration of areas made by this order shall be deemed to come into operation immediately before the date fixed by that Act as the appointed day for those purposes.

(2) For the purposes of settlement and irremovability the parish of Clayton shall be deemed to be situate within the City at the appointed day referred to in paragraph 3 of part I. of the ninth schedule to the Local Government Act 1929 but except for those purposes nothing in this order shall affect the area of any poor law union.

PART II.

ALTERATIONS OF BOUNDARY.

Extension
of City.

6.—(1) The boundary of the existing City shall be altered so as to include within the City the urban district of Clayton which is coloured yellow on the maps.

(2) The city of Bradford as extended by this order shall for the purposes of the Municipal Corporations Acts and for all other purposes be the city of Bradford and shall be the county borough of Bradford for the purposes of the Act of 1888.

County
electoral
division.

7.—(1) The added area shall cease to form part of the Queensbury electoral division of the County.

(2) The person who immediately before the appointed day is the county councillor representing the existing Queensbury electoral division shall be deemed to have been elected to represent that division as altered by this order and shall retire

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on the day on which he would have retired if this order had not been made. A.D. 1930.

8.—(1) One of the maps shall be deposited in the office of the Minister and the duplicate map shall be deposited with the town clerk at his office.

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Deposit and
copies of
maps.

(2) Copies of the map deposited with the town clerk certified by him to be true shall be sent by him within one month after the date of the Act of Parliament confirming this order to the clerk of the County Council the Board of Inland Revenue the Commissioners of Customs and Excise the Registrar-General the Postmaster-General the Board of Trade the Minister of Transport the Electricity Commissioners and the Minister of Agriculture and Fisheries.

9.—(1) Copies of or extracts from the map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *primâ facie* evidence of the contents of the map so far as it relates to the boundary of the added area.

Copies of
map to be
evidence.

(2) The map deposited with the town clerk shall at all reasonable times be open to inspection by any person liable to any rate leviable within the City and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation.

(3) All fees so received shall be carried to the general rate fund of the City.

PART III.

MUNICIPAL WARDS ELECTIONS &C.

10. Subject to the provisions of the Municipal Corporations Acts—

New ward
of City
and increase
of coun-
cillors and
aldermen.

(1) the added area shall form a new ward of the City to be called the Clayton ward;

(2) three councillors shall be assigned to the Clayton ward the number of councillors of the City shall be increased from sixty-three to sixty-six and the number of aldermen from twenty-one to twenty-two.

11. For the purposes of the application to the City of the provisions of the County and Borough Councils (Qualification) Act 1914 the added area shall be deemed to have always formed part of the City.

County and
Borough Councils
(Qualification)
Act 1914.

12.—(1) Upon such day in the month of April or May nineteen hundred and thirty as the lord mayor of the City may in writing appoint there shall be held an election of three councillors for the Clayton ward of the City constituted by this order.

Election of
councillors
for Clayton
ward.

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(2) The lord mayor and town clerk of the City or such other persons as the Secretary of State may appoint shall perform the duties devolving at an election upon a mayor and town clerk respectively under the Municipal Corporations Acts and the lord mayor shall be the returning officer at the election but may appoint some other person to act as returning officer.

(3) The councillors elected at the election shall come into office on the appointed day.

First
election of
additional
alderman.

13.—(1) The first election of the additional alderman of the City shall take place at a meeting of the council of the City held after councillors for the Clayton ward of the City have been elected and at the first election the additional alderman shall be chosen from among persons (not being councillors of the City) who have resided within the added area during the whole of the twelve months preceding the election.

(2) The council of the City shall at the same meeting assign an alderman to act until the quarterly meeting of the council in November following as returning officer at any election for the Clayton ward.

Retirement
of coun-
cillors and
alderman
elected in
1930.

14.—(1) The councillors of the City elected at the first election for the Clayton ward shall retire from office as follows:—

(a) The councillor who is elected by the smallest number of votes on the first day of November nineteen hundred and thirty-one;

(b) The councillor who is elected by the largest number of votes on the first day of November nineteen hundred and thirty-three;

(c) The remaining councillor on the first day of November nineteen hundred and thirty-two.

(2) If for any reason it is doubtful which of the councillors elected in pursuance of this order ought to retire from office on a day mentioned in this article the question shall be determined at the first or second meeting after the appointed day of the council of the City by lot conducted under the direction of the person presiding at that meeting.

(3) The additional alderman of the City elected in pursuance of this order shall retire from office on the ninth day of November nineteen hundred and thirty-two.

Existing
lord mayor
aldermen
and coun-
cillors.

15. The persons who hold office immediately before the appointed day as the lord mayor aldermen and councillors of the existing City shall on the appointed day become the lord mayor aldermen and councillors of the City but shall respectively retire from office on the day on which they would have retired from office if this order had not been made.

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PART IV.

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EXTENSION OF CITY JURISDICTION AND OF ACTS ORDERS
BYELAWS &C.

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16. The powers and duties of the quarter sessions recorder clerk of the peace justices of the peace and stipendiary magistrate appointed for the existing City and of the clerk to those justices and of the police constables and other peace officers of the existing City shall extend to and apply throughout the City and the added area shall cease to form part of any petty sessional division of the County :

Powers and
duties of
justices
police &c.
extended.

Provided that—

- (a) every person committing an offence in any part of the added area prior to the appointed day shall be tried and dealt with as if this order had not been made ;
- (b) every proceeding which prior to the appointed day has been begun by or is pending before any justice or justices in relation to any matter arising in or concerning any part of the added area may be continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this order had not been made.

17.—(1) Until the death resignation or removal from office of Edward Wallace Norris the present coroner for the Halifax District of the Honour of Pontefract (in this article called “ the county coroner ”) the following provisions shall apply :—

Jurisdiction
of coroners.

- (a) Nothing in this order shall restrict or affect the powers duties jurisdiction or emoluments of the county coroner and the added area shall continue to be within his district as if it had remained part of the county ;
- (b) After the appointed day the salary of the county coroner in respect of his services in the added area shall be such amount as may be determined by agreement between the County Council and the Corporation (or failing agreement by the Secretary of State) to be fairly proportionate to the services required in that area and the salary so determined shall be paid to the county coroner by the Corporation but corresponding sums shall from time to time be deducted from the salary which would otherwise have been payable to him by the County Council in respect of the whole area within his jurisdiction ;
- (c) All fees allowances and disbursements in respect of an inquest arising in the added area paid by the county coroner in accordance with the schedule for the time

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being in force made by the County Council under section 25 of the Coroners Act 1887 as amended by any other enactment shall be repaid to him by the Corporation.

(2) Upon the death resignation or removal from office of the county coroner the powers duties and jurisdiction of the coroner of the existing City shall extend throughout the City.

Repeal of
certain
Bradford
provisional
orders.

18. The confirmation Acts mentioned in the first and second columns of the first schedule to this order in so far as they relate to the provisional orders mentioned in the third column of that schedule are hereby repealed.

Extension of
local Acts
and orders
relating to
existing city.

19. Subject to the provisions of the Bradford Order 1929 and of this order the provisions of—

- (a) the local Acts mentioned in the second schedule to this order and of the confirmation Acts mentioned in parts I and II of the third schedule to this order so far as those confirmation Acts relate to the provisional orders specified in those parts of the schedule;
- (b) any other local Act or provisional order duly confirmed and affecting the existing City or the Corporation (including any such Act or order passed or confirmed during the present session of Parliament); and
- (c) any order affecting the existing City or the Corporation which has effect as if enacted by Parliament;

as the same respectively are in force within the existing City immediately before the appointed day shall extend and apply to the City and any reference therein to the existing City and the Corporation thereof shall be deemed to refer to the City and the Corporation thereof:

Provided that—

- (a) in the application to the added area of section 47 of the Bradford Corporation Act 1910 (which relates to the laying of electric lines &c. in streets not dedicated to public use) the reference to the Bradford Electric Lighting Order 1883 and the Acts incorporated therewith shall be read as a reference to the Clayton Electricity Special Order 1926 and the Acts incorporated with that order;
- (b) where any provision in an Act or provisional order extended by this article regulates any matter which under the general law may be regulated by byelaws to be made by the Corporation the Minister may by order made on the application of the Corporation either repeal the provision or adapt it for the purpose of enabling the Corporation under the general law to make byelaws regulating the matter but any such

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order shall be laid before Parliament as soon as it is made;

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- (c) nothing in this article shall extend to the added area any provision which is inconsistent with any byelaw made by the Clayton Council and in force within the Clayton District immediately before the appointed day.

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20.—(1) The powers duties and liabilities of the Clayton Council under the Clayton Electricity Special Order 1926 shall be transferred to the Corporation and for the purposes of that order the Corporation shall be the undertakers :

Electricity.

Provided that the prices from time to time to be charged by the Corporation for electrical energy supplied by them within the added area shall not exceed the prices charged by the Corporation in the like circumstances within that part of the City which comprises the existing City.

(2) The undertaking of the Clayton Council under the Clayton Electricity Special Order 1926 shall by virtue of this order be transferred to and vest in the Corporation and subject to the provisions of this order that undertaking and the existing electricity undertaking of the Corporation shall for the purposes of the Electricity (Supply) Acts 1882 to 1928 form one undertaking.

(3) Nothing in this order shall extend to the added area the confirmation Act and order mentioned in the fourth schedule to this order which relate to the supply by the Corporation of electricity.

21.—(1) The Yorkshire Electric Power Company (in this article called "the Power Company") shall transfer to the Corporation their powers within the added area and shall sell to the Corporation and the Corporation shall purchase so much of their undertaking as is within the added area including all lands buildings works materials and plant belonging to and used by the Power Company for the purpose of their undertaking within the added area and any right which the Power Company may have under an agreement dated the sixth day of December nineteen hundred and twenty-seven and made between the Power Company of the one part and the Clayton Council of the other part or otherwise to require the Corporation to take from the Power Company a supply of electrical energy in bulk for use within the added area on payment of the fair market value as on the day immediately before the appointed day of so much of the undertaking as aforesaid as a going concern due regard being had to goodwill and to any loss occasioned by severance :

Purchase by
Corporation
of under-
taking with-
in added
area of York-
shire Elec-
tric Power
Co.

Provided that—

- (a) nothing in this order shall prejudice the rights (if any) of the Power Company to lay through mains in the added area; and

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Order.*

(b) the powers of the Power Company under sections 48 and 50 of the Yorkshire Electric Power Act 1901 to supply energy to any railway or water company or the proprietors or trustees of a canal or navigation shall not be affected or abridged as a result of any such transfer sale and purchase as aforesaid.

(2) Until the completion of such purchase the Corporation as the undertakers of the Clayton Electricity Special Order 1926 may notwithstanding any provisions to the contrary which may be contained in an indenture dated the twelfth day of April nineteen hundred and eighteen and made between the Corporation of the one part and the Power Company and Electrical Distribution of Yorkshire Limited of the other part supply electrical energy within the added area but shall not generate electrical energy for use or sale within nor use sell or distribute within or for use within the added area electrical energy generated or supplied by any company body or person other than the Power Company except for the purposes of their tramways (including tramways leased to and worked by them) and other of their undertakings for their own use.

(3) The said purchase shall be completed on the first day of July nineteen hundred and thirty or on such other date as may be agreed upon in writing by the Corporation and the Power Company and such transfer and sale may be carried into effect by a duly executed deed without any further or other authority than this order.

(4) Forthwith upon the completion of such purchase the powers of the Corporation under the Yorkshire Electric Power Acts 1901 to 1927 as transferees of so much of the undertaking of the Power Company as is within the added area shall cease and determine.

(5) Failing agreement as to the price to be paid to the Power Company on the said purchase the question shall be referred to arbitration in accordance with the said indenture of the twelfth day of April nineteen hundred and eighteen.

(6) Until the completion of the said purchase the provisions of the said agreement of the sixth day of December nineteen hundred and twenty-seven shall so far as the added area is concerned after the appointed day continue to have effect with the substitution therein of the Corporation for the Clayton Council and after the completion of the said purchase the provisions of the said agreement shall cease to have effect except in relation to the period before such completion.

(7) The payment to the Power Company of any capital sum in respect of the transfer to the Corporation of the undertaking and rights within the added area of the Power Company shall be a purpose for which the Corporation may borrow under

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the Electricity (Supply) Acts 1882 to 1928 with the sanction of the Electricity Commissioners. A.D. 1930.

22.—(1) As from the first day of July nineteen hundred and thirty the charges from time to time made by the Corporation for the supply of gas within the added area shall not exceed the charges made by the Corporation in the like circumstances within that part of the City which comprises the existing City. *Bradford (Extension) Order.*
Gas.

(2) Nothing in this Order shall prejudice or affect the rights and powers of the Drighlington and Gildersome Gas Light Company under the Drighlington and Gildersome Gas Act 1865 or of the Pudsey Coal Gas Company under the Pudsey Gas Acts 1845 and 1887 or shall be deemed to empower the Corporation to supply gas within the limits of supply of either of those companies without the written consent of that company.

23. As from the first day of April nineteen hundred and thirty the rates and charges from time to time made by the Corporation for the supply of water within the added area shall not exceed the rates and charges made by the Corporation in the like circumstances within that part of the City which comprises the existing City : *Water charges.*

Provided that with respect to water supplied by the Corporation by meter this provision shall operate as from the commencement of the quarter next beginning after the appointed day.

24.—(1) The provisions of— *Adoptive Acts.*
(a) the Baths and Washhouses Acts 1846 to 1925;
(b) the Public Health Acts Amendment Act 1890;
(c) that part of the Museums and Gymnasiums Act 1891 which relates to museums;
(d) the Public Libraries Acts 1892 to 1919;
(e) the Local Government and other Officers' Superannuation Act 1922; and
(f) Part II. of the Public Health Act 1925 (except sections 17 to 19 33 and 34) and Part III. of that Act (except section 38) and Parts IV. and V. of that Act;
shall be in force within and apply to the City as if the same had been adopted for the City.

(2) The provisions of any adoptive Act in force within the added area shall subject to the provisions of this article cease to be in force within the added area :

Provided that all powers duties and liabilities under the Private Street Works Act 1892 vested in or attaching to the Clayton Council immediately before the appointed day shall be deemed to vest in and attach to the Corporation so far as regards any works in the added area executed by the Clayton Council under that Act before the appointed day or in respect of which the Clayton Council before that day shall have passed a resolution or shall have served notices.

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(3) Any order under the Infectious Disease (Notification) Act 1889 or under any adoptive enactment mentioned in this article which is in force immediately before the appointed day throughout the existing City shall extend and apply to the added area in substitution for any order under the Infectious Disease (Notification) Act 1889 or under any adoptive Act which by virtue of this article ceases to be in force.

Corporation
to be burial
board for
City.

25.—(1) The Corporation shall be the burial board for the City and shall have within the City to the exclusion of any other burial authority all the powers duties and liabilities of a burial board under the Burial Acts 1852 to 1906 :

Provided that no approval sanction or authorisation of the vestry of any parish within the City shall be required in respect of any act of the Corporation as the burial board.

(2) Any table of fees and charges in force in respect of any existing burial ground maintained by the Corporation shall extend and apply to inhabitants of the burial area as extended by this order as such table applies to inhabitants of the existing burial area.

Orders under
Public
Health Acts
Amendment
Act 1907 or
Public
Health Act
1925.

26. Subject to any order which the Minister or the Secretary of State may make on or after the appointed day the following provisions shall have effect as regards orders under the Public Health Acts Amendment Act 1907 or the Public Health Act 1925—

(1) The provisions of any order made before the appointed day and declaring to be in force throughout the existing City any parts or sections of either of those Acts shall have effect as if any reference in that order to the existing City extended and applied to the City and as if the said parts or sections were accordingly declared to be in force within the City ;

(2) Any other order under either of those Acts which is in force immediately before the appointed day throughout the existing City shall extend and apply to the added area ;

(3) The provisions of any order made before the appointed day and declaring to be in force within the added area any parts or sections of either of those Acts shall cease to apply to the added area and the parts or sections declared by any such order to be in force shall save as in this article provided cease to be in force within the added area.

Orders under
section 33
of Act of
1894.

27.—(1) The powers duties and liabilities of a parish council under section 8 (1) (h) of the Act of 1894 conferred upon the Corporation by the order of the Local Government Board dated the first day of November nineteen hundred and four shall

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be deemed to have been conferred on the Corporation in respect of the City. A.D. 1930.

(2) The powers duties and liabilities of a parish council—

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(a) under section 14 of the Act of 1894 conferred upon the Clayton Council by the order of the Local Government Board dated the eleventh day of March eighteen hundred and ninety-six; and

(b) under sections 5 6 and 8 of the Act of 1894 conferred upon the Clayton Council by the order of the Local Government Board dated the fifth day of September eighteen hundred and ninety-nine in respect of the parish property mentioned in that order;

shall be deemed to have been conferred upon the Corporation as respects the parish of Clayton.

(3) The orders of the Local Government Board referred to in the foregoing paragraphs of this article shall be read as amended so as to give effect to the provisions of this article.

28. Any order made under the Shop Hours Act 1904 or under the Shops Acts 1912 to 1928 and in force immediately before the appointed day in any area affected by this order shall subject to the provisions of those Acts remain in force and apply to the area to which it then applied. Orders under Shop Hours Act 1904 or Shops Acts 1912 to 1928.

29. Any order under the Wild Birds Protection Acts 1880 to 1908 which is in force immediately before the appointed day within the existing City shall extend to the added area and any order under those Acts which is then in force within the County shall cease to apply to the added area. Orders under Wild Birds Protection Acts.

30.—(1) Any byelaws made by—

*Byelaws
regulations
scales of
charges &c.*

(a) the Corporation for good rule and government or under the Education Act 1921 or any enactment repealed by that Act or with respect to tramways or any park pleasure ground or open space; or

(b) the Corporation or their watch committee and confirmed by the Secretary of State;

which immediately before the appointed day are in force within the existing City shall extend and apply to the City until the byelaws are repealed or altered by further byelaws.

(2) Subject to paragraph (1) of this article all byelaws made by the Corporation or by the Clayton Council and in force within the existing City or within the Clayton District immediately before the appointed day—

(a) if made before the first day of January nineteen hundred and twenty shall continue to apply to the existing City or to the added area as the case may be for a period of one year after the appointed day (unless previously repealed or altered by byelaws made by

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the Corporation) but shall on the expiration of the period aforesaid cease to be in force within any part of the City;

(b) if made on or after the first day of January nineteen hundred and twenty shall continue to apply to the existing City or to the added area as the case may be until they are repealed or altered by byelaws made by the Corporation.

(3) In their application to the added area any byelaws made by the Clayton Council shall have effect as if they had been made by the Corporation.

(4) All byelaws made by the County Council or by the standing joint committee of the County and in force immediately before the appointed day within the added area shall cease to be in force within that area.

(5) Any proceedings which if this order had not been made might have been taken for any offence within the added area committed before the appointed day against—

(a) any byelaws of the Clayton Council; or

(b) any byelaws of the County Council or the standing joint committee which by virtue of this article cease to apply to the added area;

may be taken by the Corporation as if the Corporation had been substituted therein for the Clayton Council the County Council or the standing joint committee as the case may require and as if the byelaws of the County Council or the standing joint committee had remained in force.

(6) Subject to the provisions of this order any scale of charges made by the Corporation and in force immediately before the appointed day throughout the existing City shall extend and apply to the City until the scale is repealed or altered by a further scale of charges made by the Corporation in substitution for any scale of charges for similar purposes made by the Clayton Council.

(7) In this article “byelaws” includes any regulation and “scale of charges” includes any list of tolls or table of fees or payments and any reference to byelaws or a scale of charges made by the Corporation or the Clayton Council shall be read as including a reference to byelaws or a scale of charges made by the predecessors of the Corporation or the Clayton Council as the case may require.

PART V.

COUNTY ADMINISTRATION.

Transfer
of public
elementary
schools.

31.—(1) For the purposes and subject to the provisions of the Education Act 1921—

(a) Any public elementary school provided by the County Council as local education authority and situate within

the added area and the furniture fittings books and apparatus belonging to the County Council of any public elementary school within the added area shall by virtue of this order be transferred to and vest in the Corporation as the local education authority for all the estate and interest therein of the County Council as the local education authority ;

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- (b) All contracts debts and liabilities which immediately before the appointed day are existing or are owing by or attach to the County Council in respect exclusively of any public elementary school within the added area or of the furniture fittings books or apparatus or with respect to the officers teachers and servants of any public elementary school within the added area shall by virtue of this order enure to and be carried into effect by and be discharged and satisfied by the Corporation as the local education authority ;
- (c) Section 68 of the Act of 1894 shall apply with respect to any adjustment required for the purposes of this article ;
- (d) Subject to any adjustment which may hereafter be made the liability for repayment of so much of any loan raised exclusively in respect of any public elementary school or of the furniture fittings or apparatus transferred to and vested in the Corporation by virtue of this order as is owing immediately before the appointed day and the liability for the payment of interest on that part of any such loan shall by virtue of this order be transferred and attach to the Corporation as the local education authority and so much of any such loan as is then owing shall be charged on the general rate fund and general rate of the City and shall be repaid by the Corporation within the period (if any) for which that part of the loan was originally sanctioned or within which that part of the loan is otherwise required to be repaid or is made repayable.

(2) In this article "public elementary school" includes the site and schoolhouse and also any land acquired and held by the County Council as the local education authority for purposes of elementary education.

32. Any manager of any public elementary school within the added area who was appointed by the County Council or by the Clayton Council shall vacate office on the appointed day.

School
managers.

33.—(1) On the appointed day such members of the police force of the County as before that day shall have been determined by agreement subject to the approval of the Secretary of State between the standing joint committee of the County and the

County
police.

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(Extension)
Order.

watch committee of the Corporation or in default of agreement by the Secretary of State shall be transferred to and become part of the police force of the City :

Provided that no member of the police force of the County shall be so transferred without his consent.

(2) Every member of the county police force so transferred shall hold office in the police force of the City upon the same tenure and subject to the same terms and conditions as the other serving members of the city police force of the same rank as such member and any period of service which the transferred member was entitled to reckon before the transfer for purposes of pay promotion or pension in the police force of the County shall be reckoned for the same purpose in the police force of the City :

Provided that where the scale of ordinary pensions applicable to a member of the police force of the County who is so transferred is by virtue of section 29 (1) (a) of the Police Pensions Act 1921 a scale other than that prescribed in Part I. of the first schedule to that Act such scale shall continue to apply to him as if he had not been so transferred.

(3) The provisions of subsection (2) of section 8 of the Police Pensions Act 1921 shall extend and apply to and in relation to any member of a police force transferred under this article as if that member had removed with the written sanction of the chief constable of the County and notwithstanding that at the date of the transfer that member may not have completed one year's approved service in the police force of the County.

Transfer of
police
constables'
residences'
&c.

34. Any residence for a police constable provided in the added area by the County Council and any furniture provided by the County Council for any such residence so situate shall by virtue of this order be transferred to and vest in the Corporation on the appointed day for all the estate and interest therein of the County Council and section 62 of the Act of 1888 as adapted by this order shall apply with respect to any adjustment which may be required in consequence of the transfer made by this article.

Insurance
committees.

35.—(1) The Minister may by order at any time after the passing of the Act of Parliament confirming this order make such provisions as appear to him to be necessary for transferring to the insurance committee for the City such of the property rights and liabilities of the insurance committee for the County as relate to persons resident in the added area.

(2) An order made under this article may authorise the insurance committee for the County to continue to act as insurance committee for the added area until such date not being later than the thirty-first day of December nineteen hundred and thirty as may be specified in the order and may for

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that purpose postpone the operation of this order so far as relates to the rights and duties of the respective insurance committees for the County and the City until the date so specified and may provide for such financial adjustments and may contain such other consequential and supplementary provisions as may appear to the Minister necessary or expedient.

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(3) An order under this article may be revoked revised or amended by an order made in like manner as the original order.

(4) Subject to any order under this article the persons who immediately before the appointed day are members of the respective insurance committees for the existing County and the existing City shall be deemed to have been appointed or elected as and shall be the members of the respective insurance committees for the County as altered by this order and the City.

36.—(1) The local registrar for the County under the Land Charges Act 1925 and the rules made thereunder shall within fourteen days after the appointed day supply to the local registrar for the City an office copy of every entry in the local land charges register relating to any premises situate within the Clayton District and shall be paid by the Corporation in respect thereof such fees as are prescribed by the said rules.

Local land
charges
register for
County.

(2) The local registrar for the City shall within one month after the receipt of the office copy mentioned in paragraph (1) of this article enter the same with any necessary modifications in the appropriate part of the local land charges register of the City.

(3) Until the expiration of one month after the appointed day the following provisions shall have effect in respect of all land within the Clayton District—

- (a) The local registrar for the City shall give notice to any person desiring to make a personal search that an additional search should be made in the register for the County;
- (b) Where application is made for an official search the local registrar for the City shall issue free of charge a certificate of official search in the register of the City and shall forward to the local registrar for the County the application received by him together with the fees paid in respect thereof;
- (c) The local registrar for the County shall permit and make such searches and furnish such office copies and certificates as he would have been required to permit make and furnish and shall in relation thereto have the same powers and be subject to the same obligations as if this order had not been made;

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Order.

(d) Where a local land charge duly registered in the local land charges register of the County is in pursuance of this order transferred from the register of the County to the register of the City such charge shall not be void as against a purchaser for money or money's worth of a legal estate in the land affected thereby by reason only that it has not been entered in the register of the City.

Register
of nursing
homes.

37.—(1) The clerk of the County Council shall before the appointed day send the town clerk of Bradford a copy of every entry in the register of the County Council under the Nursing Homes Registration Act 1927 which relates to any nursing home situate within the Clayton District and the town clerk shall include in the register of the Corporation under that Act the particulars furnished by the clerk of the County Council.

(2) Any exemption in force immediately before the appointed day from the operation of the Nursing Homes Registration Act 1927 which may have been granted by the County Council in respect of premises within the Clayton District shall continue in force until the exemption shall expire.

Adjustment
of financial
relations
between
County and
county
boroughs.

38.—(1) In any case where the extension of the existing City by this order affects the distribution of any moneys between the County and the City or between the County and the City on the one hand and any other county borough on the other hand or any financial relations or questions between those areas or any adjustment which has been made in regard to the said distribution or financial relations or questions and for the adjustment of which provision is not made by any other Act equitable adjustments may be made between the areas interested.

(2) Any adjustment authorised by paragraph (1) of this article may be made by agreement between the councils affected or by an arbitrator appointed by those councils and if such adjustment has not been made or an arbitrator has not been appointed before the thirty-first day of December nineteen hundred and thirty or such later day as may be allowed by the Minister then on the application of any of the councils interested the Minister may if he thinks fit make or appoint an arbitrator to make the adjustment.

(3) In any case in which an agreement for equitable adjustments as aforesaid has not been made or so far as any such agreement may not extend to any financial relations or questions the provisions of the Act of 1888 relating to adjustments between administrative counties and county boroughs shall apply with the necessary modifications and the Minister or an arbitrator

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appointed by him as the case may be shall be substituted in those provisions for the commissioners appointed under the Act of 1888 and notwithstanding anything in the provisions of this order or of the Act of 1888 any such adjustment and the determination of any matter incidental or in relation thereto or consequent thereon shall when made by the Minister be deemed to be made by him otherwise than as an arbitrator and any arbitrator appointed by him shall be deemed to be an arbitrator within the meaning of section 62 of the Act of 1888 and the provisions of the Act of 1888 shall apply accordingly :

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Order.*

Provided that—

- (a) subsections (1) and (5) of section 87 of the Act of 1888 as amended by any other enactment shall apply to any inquiries which may be directed by the Minister under this article and to the costs of those inquiries; and
- (b) subsection (6) of section 32 of the Act of 1888 shall apply to any agreement or award made under this article.

39.—(1) An equitable adjustment shall be made between the City and the County respecting the interest of the added area in any compensation fund constituted under section 21 of the Licensing (Consolidation) Act 1910 or under any enactment repealed by that Act.

Adjustment
for purposes
of Licensing
(Consolida-
tion) Act
1910.

(2) Such adjustment shall be made by agreement between the compensation authorities within the meaning of the Licensing (Consolidation) Act 1910 for the City and the County within twelve months after the appointed day or such extended period as may be allowed by the Secretary of State or in default of agreement by an arbitrator appointed by the Secretary of State.

(3) For the purpose of such adjustment an arbitrator appointed by the Secretary of State shall be deemed to be an arbitrator within the meaning of section 62 of the Act of 1888 and the provisions of that Act shall apply accordingly.

40.—(1) The administrative scheme made by the County Council under section 4 of the Local Government Act 1929 and approved by the Minister on the second day of November nineteen hundred and twenty-nine shall cease to extend to the Clayton District and the Clayton Council and in that part of the schedule to that scheme which relates to the guardians committee for the East Morley area the following amendments shall have effect :—

Amendment
of adminis-
trative
scheme for
county
under
19 & 20 Geo.
5. c. 17. s. 4.

- (a) The references to the Clayton urban district and to the number of members to be nominated by the Clayton

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Order.*

Council shall be omitted from the schedule and in column 3 of that part of the schedule 20 shall be substituted for 22;

- (b) The number of members of the County Council appointed as representing electoral divisions in the East Morley area shall be increased from 3 to 4 and the number of persons appointed by the County Council not being elected members of the County Council shall be increased from 11 to 12.

(2) Any persons nominated by the Clayton Council as members of the guardians committee for the East Morley area shall not act as members of that committee.

PART VI.

PROVISIONS AS TO THE CLAYTON COUNCIL.

Dissolution
property &c.
of Clayton
Council.

41.—(1) Subject to the provisions of this order—

- (a) The Clayton Council shall be abolished and shall cease to exist;
- (b) All property or liabilities which immediately before the appointed day are vested in or attach to the Clayton Council shall by virtue of this order be transferred to vest in or attach to the Corporation as the urban authority for the execution of the Public Health Acts 1875 to 1926.

(2) All sums due to the Clayton Council immediately before the appointed day may be recovered by the Corporation.

Mortgage
debts of
Clayton
Council.

42.—(1) Subject to the provisions of this order—

- (a) The liability for the repayment of so much of any moneys borrowed by the Clayton Council as immediately before the appointed day are owing and for the payment of the interest thereon shall by virtue of this order be transferred to and attach to the Corporation;
- (b) So much of any moneys borrowed by the Clayton Council as immediately before the appointed day are owing and charged upon a fund or rate of that Council shall be charged upon the general rate fund or general rate of the City.

(2) All borrowed moneys to which this article applies shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans

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in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable. A.D. 1930.

(3) Nothing in this order shall prejudice or affect any mortgage or other security which has been granted in respect of any borrowed moneys the liability for the repayment of which is transferred from the Clayton Council to the Corporation by this article or the powers of any person entitled under any such mortgage or other security to enforce the same as if this order had not been made and where for any such purpose it is necessary to continue the exercise of a power which would have existed but for this order the power may continue to be exercised as if this order had not been made.

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(Extension)
Order.*

43.—(1) The Clayton Council shall liquidate as far as practicable before the appointed day all current debts and liabilities incurred by them. Liquidation by Clayton Council of current debts and liabilities.

(2) If default is made by the Clayton Council in complying with the requirement in paragraph (1) of this article the Corporation may after the appointed day make and levy over the added area a general rate of such an amount in the pound as will be sufficient to defray the liability of that area in respect of the current debts and liabilities of the Clayton Council.

(3) Any general rate authorised by this article shall be levied with and as an additional item of the general rate of the City but shall not be a rate to which the article in Part VII of this order the marginal note whereof is "Differential rating in added area" applies.

44.—(1) The local registrar for the Clayton District under the Land Charges Act 1925 and the rules made thereunder shall on the appointed day deliver to the town clerk of the City as the local registrar for the City the local land charges register of the Clayton District and all documents relating to that register. Land charges register of Clayton District.

(2) The town clerk of the City shall forthwith incorporate that register with any necessary modifications in the appropriate part of the local land charges register of the existing City.

(3) Where a local land charge duly registered in the local land charges register of the Clayton District is in pursuance of this article transferred from that register to the register of the City that charge shall not be void as against a purchaser for money or money's worth of a legal estate in the land affected thereby by reason only that it has not been entered in the local land charges register of the City.

45.—(1) Any proceedings taken by the Clayton Council under the Town Planning Act 1925 or any enactment thereby repealed (including any agreement order approval consent or notice under Town planning.

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A.D. 1930. that Act or repealed enactment) shall in so far as it relates to land within the added area have effect as if it had been taken by the Corporation in respect of that land.

—
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(Extension)
Order.*

(2) The Corporation shall exercise the powers conferred and be subject to the duties imposed on the Clayton Council by the Clayton Town Planning Scheme No. 1 (Interim Development) Order 1924.

Trusteeship
of educa-
tional
foundations.

46.—(1) The powers of the Clayton Council to appoint trustees of the Clayton village school educational foundation under a scheme of the eighteenth day of March nineteen hundred and nine shall be transferred to and vest in the Corporation without prejudice to the tenure of office of any trustee immediately before the appointed day in office.

(2) Subject to the provisions of any future scheme the trustees of the said foundation shall have power by resolution approved by the Board of Education under their seal to provide for the appointment by the Corporation of one or more additional representative trustees of the foundation.

Charities
founded by
Alfred
Wallis.

47.—(1) Nothing in this order shall transfer to the Corporation any powers duties property or liabilities vested in or attaching to the Clayton Council as trustees of the charities known respectively as the Wallis Charity and the Wallis Sick Nursing Fund and subject to the provisions of paragraph (2) of this article all such powers duties property and liabilities shall on the appointed day vest in and attach to a body of trustees consisting of the several persons who immediately before the appointed day are in office as members of the Clayton Council.

(2) The Charity Commissioners at any time after the confirmation of this order by Parliament in accordance with their ordinary jurisdiction under the Charitable Trusts Acts 1853 to 1925 may establish a scheme providing for the constitution of a body of trustees to administer the property of either of the charities mentioned in paragraph (1) of this article and for the vesting or transfer of such property in or to the Official Trustee of Charity Lands or the Official Trustees of Charitable Funds (as the case may require) or in or to the body of trustees so constituted or any members thereof as if the charity were a charity within the jurisdiction under those Acts of the Charity Commissioners but without the necessity of any application being made for the purpose.

(3) The provisions of this article shall extend to the Wallis Sunday School Trust Fund and in the application of those provisions to that fund references to the Board of Education shall be substituted for the references to the Charity Commissioners.

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48.—(1) All property and liabilities which immediately before the appointed day are vested in or attach to the Clayton Council in the execution of the Public Health (Interments) Act 1879 shall by virtue of this order be transferred to and vest in the Corporation as the burial board for the City.

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(Extension)
Order.*

Property and
liabilities
under
42 & 43 Vict.
c. 31.

(2) Any cemetery transferred to the Corporation by this article shall be held and maintained by them as if it had been provided for the City by the Corporation under the Burial Acts 1852 to 1906 and the provisions of those Acts shall extend and apply to the cemetery.

(3) Subject to the provisions of the Cemeteries Clauses Act 1847 and of the Burial Act 1900 any table of fees and charges in force in respect of a cemetery transferred to the Corporation by this article shall continue in force and the fees and charges shall thenceforth be receivable by the Corporation acting as a burial board until any such table may be varied or revoked by them.

49.—(1) So much of the Local Government Board's Provisional Orders Confirmation Act 1873 (No. 2) and of the Local Government Board's Provisional Orders Confirmation (Briton Ferry &c.) Act 1876 as relate to the provisional orders applying to the Clayton District which are set out in the schedules to those Acts are hereby repealed.

Repeal of
Clayton
provisional
orders and
saving for
protective
clauses.

(2) The provisions of any protective clause for the benefit of the Clayton Council (or their predecessors) contained in any local Act confirmation Act or order (by whomsoever obtained) shall in respect of all matters relating to or affecting any part of the added area enure to the benefit of the Corporation and shall be construed as if a reference to the Corporation were substituted for any reference to the Clayton Council (or their predecessors) as the case may be.

50.—(1) The agreements between the Corporation and the Clayton Council (in this article called "the agreements") dated respectively the thirtieth day of September and the twenty-second day of October nineteen hundred and twenty-nine shall continue to subsist on and after the appointed day and nothing in this order shall substitute in the agreements the Corporation for the Clayton Council.

Agreement
with
Clayton
Council.

(2) The persons who immediately before the appointed day are the chairman and members of the Clayton Council or any of such persons or their survivors shall be entitled at all times during the period of ten years next following the appointed day in their own names to enforce the provisions of the agreements in lieu of the Clayton Council.

(3) If at any time the Corporation shall by the promotion of legislation or otherwise attempt to obtain the rescission or variation of any of the provisions of the agreements or of this

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Order.

article any three or more owners of property in or ratepayers of that part of the City which comprises the Clayton District shall be entitled to petition either House of Parliament against or otherwise to oppose such promotion or attempt and the Corporation shall not be entitled to object to the locus standi of any such persons as petitioners and shall pay out of the general rate fund or general rate of the City the reasonable costs of the petition or opposition.

(4) Section 1 of the Public Authorities Protection Act 1893 shall not apply to any action or other proceeding commenced against the Corporation for the purpose of enforcing compliance with their obligations under the agreements.

Audit of
accounts of
Clayton
Council.

51.—(1) The accounts of the Clayton Council and of their committees and officers shall be made up to the appointed day and shall be audited by the district auditor in like manner and subject to the like incidents and consequences as if this order had not been made.

(2) Any sum certified at the audit by the district auditor to be due from any person shall be paid to the Corporation.

PART VII.

RATING AND VALUATION.

Differential
rating in
added area.

52.—(1) The total amount in the pound in any financial year commencing on the first day of April of the general rate or rates to be levied by the Corporation for the purpose of meeting their own expenditure upon any rateable hereditament situate within the added area shall be less by one shilling than the total amount in the pound of the general rate or rates to be levied in the same financial year by the Corporation for the purpose of meeting their own expenditure in the same financial year upon any hereditament situate within that portion of the existing City which is not by virtue of any provision in an existing local Act or order entitled to relief from the general rate :

Provided that where a hereditament is one of those included in class (3) of the hereditaments mentioned in column (1) of part II. of the second schedule to the Rating and Valuation Act 1925 the amount of the relief afforded by this article shall be fivepence instead of one shilling.

(2) Any relief from a general rate afforded in pursuance of this article shall be specified in all demand notes for rates issued to ratepayers of the added area and the net amount in the pound of the rate shall be distinguished.

(3) This article shall cease to have effect on the expiration of ten years after the appointed day.

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53.—(1) The added area shall cease to be within the East Morley assessment area and shall form part of the Bradford assessment area.

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*Bradford
(Extension)
Order.*

(2) References to the urban district of Clayton and to the Clayton urban district council shall be omitted from the scheme of the County Council for the constitution of assessment areas and assessment committees approved by the Minister on the twelfth day of November nineteen hundred and twenty-six.

Assessment
areas and
committees.

(3) Any person who immediately before the appointed day represents the existing City on the Bradford assessment committee shall be deemed to have been appointed to represent the City on that committee.

(4) Any person who immediately before the appointed day represents the Clayton District on the East Morley assessment committee shall on the appointed day retire from office.

54.—(1) The valuation lists of the existing City and of the Clayton District shall together form the valuation list of the City as from the appointed day.

Valuation
lists and
other docu-
ments.

(2) The Bradford assessment committee shall be entitled to the possession and control of—

(a) any copies of valuation lists of the Clayton District;
and

(b) any books or documents relating exclusively to valuation lists of the Clayton District;

which at the appointed day are in the possession or under the control of the East Morley assessment committee.

(3) Save as aforesaid all valuation lists of the Clayton District and all books and documents relating exclusively to valuation lists of the Clayton District shall be transferred to the Corporation.

55. For the purposes of all valuation lists of the City the amount of the deduction to be made under paragraph (c) of subsection (1) of section 22 of the Rating and Valuation Act 1925 from the net annual value of such rateable hereditaments within the Clayton District as are included in class (3) of the hereditaments specified in column (1) of part II. of the second schedule to that Act shall be 34 per cent.

Deduction
in ascertain-
ing rateable
value of
tithes rail-
ways canals
&c.

56.—(1) Notwithstanding the alterations of area effected by this order all precepts made in respect of a financial period commencing before the appointed day shall be as valid in law as if this order had not been made and any balance which under paragraph (f) of subsection (2) of section 9 of the Rating and Valuation Act 1925 would be payable by the Clayton Council to a precepting authority shall be paid by the Corporation and any balance which under that paragraph would be set off against

Precepts and
arrears of
rates.

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the amount required by the next precept issued to the Clayton Council shall be paid to the Corporation by the precepting authority.

(2) All rates not collected immediately before the appointed day in respect of hereditaments within the Clayton District shall be collected and recovered by the Corporation as the rating authority for the City but shall be subject to any necessary adjustment under this order.

PART VIII.

OFFICERS.

Meaning in
this part of
“local
authority”
and
“officer.”

57. In this part of this order unless the context otherwise requires—

“Local authority” means a local authority as defined in section 3 of the Local Government and other Officers’ Superannuation Act 1922 and includes the standing joint committee of a county;

“Officer” includes a servant and any person whose remuneration is paid by a local authority and any teacher employed in a public elementary school which is maintained by a local education authority.

Officers of
Corporation
and Brad-
ford assess-
ment com-
mittee.

58. The town clerk and all other officers of the Corporation of the existing City and the officers of the Bradford assessment committee who hold office immediately before the appointed day shall continue to be the town clerk and officers of the Corporation of the City or officers of the Bradford assessment committee as the case may require and shall hold their offices by the same tenure as before that day.

Existing
officers of
Clayton
Council.

59.—(1) All persons who on the date of the Act of Parliament confirming this order are officers of the Clayton Council shall on the appointed day be transferred to and become officers of the Corporation.

(2) Every officer so transferred shall hold his office by the same tenure and on the same conditions as if this order had not been made and while performing similar duties shall in respect thereof receive not less salary or remuneration and shall be entitled to not less pension (if any) than the salary remuneration or pension to which he would have been entitled if this order had not been made.

(3) The Corporation may employ a transferred officer in the discharge of such of their powers and duties as they may think proper and every officer shall perform such duties in relation thereto as may be directed by the Corporation and the Corporation may abolish the office of any officer.

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(4) If at any time within five years after the appointed day any transferred officer is required by the Corporation to perform duties which are not analogous to or which are an unreasonable addition to those which that officer was required to perform immediately before the appointed day the officer may relinquish his office.

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Bradford
(Extension)
Order.

60.—(1) Every officer in office on the date of the Act of Parliament confirming this order who by virtue of this order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office by determination of his appointment or by diminution or loss of fees salary or emoluments (and for whose compensation for that loss no other provision is made by any enactment for the time being in force) shall be entitled to compensation under this order from the Corporation for that loss.

Compensa-
tion to
existing
officers.

(2) For the purposes of this article any transferred officer who relinquishes his office under the power conferred by this order and any officer whose appointment is determined or whose fees salary or emoluments are reduced within five years after the appointed day because his services are not required or his duties are diminished in consequence of this order and not on the ground of misconduct shall be deemed unless the contrary is shown to have suffered a direct pecuniary loss in consequence of this order.

61.—(1) In determining the compensation payable to any person who becomes entitled to compensation in pursuance of this order regard shall be had to the conditions and circumstances mentioned in subsection (1) of section 120 of the Act of 1888 and the compensation shall not exceed the limit therein mentioned.

Determina-
tion of com-
pensation.

(2) Any compensation payable under this order to any officer shall be paid out of the general rate fund of the City and the provisions of section 120 of the Act of 1888 shall apply subject to the following and any necessary modifications :—

- (a) Any reference in that section to the county council shall be construed as a reference to the Corporation and in subsection (7) of that section for the words "the same or any other county council" there shall be substituted the words "the council of any county or county borough or under any district council" and there shall be added to the subsection the words "For the purposes of this subsection a teacher in a public elementary school maintained but not provided by a council shall be deemed to hold an office under the council";

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(b) References in that section to "the passing of this Act" shall be construed as references to the date on which the abolition or relinquishment of office takes effect or the direct pecuniary loss commences as the case may be; and

(c) The expression in subsection (1) of that section "the Acts and rules relating to Her Majesty's Civil Service" shall mean the Acts and rules relating to Her Majesty's Civil Service which were in operation at the date of the passing of the Act of 1888.

(3) In computing the service of any officer for the purpose of the award of compensation the Corporation shall take into account all the service of that officer under any local authority after he attained the age of eighteen years :

Provided that where the officer held two or more offices and the claim to compensation is based on a loss of one or some only of those offices account shall not be taken under this paragraph of service in an office which the officer continues to hold unless throughout the period of his service in that office he devoted the whole of his time to the duties of offices held by him under one or more local authorities.

(4) The compensation payable under this order to an officer who immediately before the appointed day shall hold two or more offices under one or more local authorities and who shall have devoted the whole of his time to the duties of such offices shall not be reduced by reason of the fact that he has devoted only part of his time to each of such offices and for the purpose of this paragraph a superintendent registrar registrar of births and deaths or registrar of marriages shall be deemed to hold an office under a local authority.

(5) If any officer was temporarily absent from his employment during the late war whilst serving in His Majesty's forces or the forces of the Allied or Associated Powers either compulsorily or with the sanction or permission of the local authority such period of temporary absence shall be reckoned as service under the local authority in whose employment he was immediately before and after such temporary absence :

Provided that in the case of an officer who after the armistice voluntarily extended his term of service with the forces no period of absence during such extension shall be so reckoned.

(6) The Corporation may in their discretion and in consideration of the fact that any officer was appointed to his office as a specially qualified person or of the fact that the officer before his appointment had been employed as a deputy assistant or clerk by a permanent officer for the purpose of the discharge of his official duties add any number of years (not exceeding ten)

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to the number of years which such officer would otherwise be entitled to reckon for the purpose of computing the compensation to which he would be entitled under the Acts and rules relating to Her Majesty's Civil Service as applied by this order.

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(7) All fees or remuneration received and retained by an officer in connection with the preparation of the jurors book or the register of electors under the Representation of the People Acts shall subject to a reasonable deduction for any expenses incurred by the officer be regarded as part of the emoluments of the officer for the purpose of compensation.

62. No service of which account has been taken in assessing the compensation payable under this order to an officer in respect of the determination or relinquishment of any appointment held by him shall in the event of his accepting any other office after the appointed day be reckoned for the purpose of computing any sum payable in respect of that office under any superannuation scheme or other scheme for ensuring benefits to an officer on retirement whether under any enactment or otherwise.

Compensa-
tion and
super-
annuation.

PART IX.

SUPPLEMENTARY.

63. Subject to the provisions of this order all property immediately before the appointed day vested in the Corporation for the benefit of the existing City (not being property held on any charitable trust) shall by virtue of this order be held by the Corporation for the benefit of the City and the Corporation shall hold enjoy and exercise for the benefit of the City all the powers which immediately before that day are exerciseable by or vested in the Corporation for the benefit of the existing City and all liabilities which immediately before the appointed day attach to the Corporation in respect of the existing City shall on that day attach to them in respect of the City.

Corporation
property
liabilities
&c.

64.—(1) So much of any sums borrowed by the Corporation as immediately before the appointed day are owing and charged upon a fund or rate of the existing City or upon the revenues of the Corporation of the existing City shall be charged upon the corresponding fund or rate of the City or upon the revenues of the Corporation of the City as the case may require.

Mortgage
debts of
Corporation.

(2) All borrowed moneys to which this article applies with the interest thereon shall be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

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Qualifying
period for
local
government
electors.

Duplicate
entries in
electors'
lists.

65. For the purposes of the register of local government electors of the City prepared in the year nineteen hundred and thirty and of all matters connected with incidental to or consequent upon those purposes the added area shall be deemed to have formed part of the City as from the twenty-eighth day of February nineteen hundred and thirty.

66.—(1) The registration officer of the parliamentary county of the West Riding of Yorkshire shall supply the registration officer of the parliamentary borough of Bradford on publication with a sufficient number of copies of the electors' lists the lists of objections to the electors' lists the lists of claimants and the lists of objections to claimants for each registration unit comprising any part of the added area and shall forthwith notify the registration officer of the parliamentary borough of his decisions on any objections or claims in respect of any such registration unit.

(2) It shall be the duty of the registration officer of the parliamentary borough of Bradford to issue such notices and otherwise to take such steps as are required by rule 23 in the First Schedule to the Representation of the People Act 1918 in order to secure that no person is registered as a local government elector in respect of more than one qualification in the City for the purpose of city council elections.

(3) Where the registration officer of the parliamentary borough considers (whether on account of an expression of choice by a person affected by a duplicate entry or otherwise) that any correction required for any of the purposes mentioned in paragraph (2) of this article should be made in the electors' list of any registration unit comprising any part of the added area he shall forthwith notify the registration officer of the parliamentary county of the West Riding of Yorkshire and that officer shall make such correction accordingly.

(4) This article shall apply to the preparation of the register of electors in the year nineteen hundred and thirty and of later registers of electors.

Alteration or
re-arrange-
ment of
register of
local
government
electors.

67.—(1) If the register of local government electors for any electoral area affected by this order is not so framed as to show the persons entitled to vote at an election to be held for an electoral division parish or ward or other voting area—

(a) the town clerk of the City in the case of an election for any voting area within the City; and

(b) the registration officer of the parliamentary county of the West Riding of Yorkshire in the case of an election for any voting area outside the City;

shall make such alteration or re-arrangement of the register as may be necessary for the purposes of such election.

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(2) The additional expense incurred by the registration officer which may be solely attributable to an alteration or re-arrangement of an existing register of electors under this article shall be defrayed by the Corporation.

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Order.

(3) It shall be the duty of the clerk of the Clayton Council and of any officer designated under article 3 of the Overseers Order 1927 by the Corporation or by the Clayton Council for the performance of the duties of overseers in relation to the preparation of the register of electors to render such assistance as may be required by the town clerk of the City or the registration officer of the parliamentary county for the purpose of any alteration or re-arrangement authorised by this article.

(4) Where in the opinion of the Secretary of State the circumstances so require the Secretary of State may make such order as appears to him to be necessary or desirable to give effect to the provisions of this article and may vary so far as is requisite the provisions in force with regard to the lists and registers of electors.

68. For the purpose of summoning jurors and of jury service the jurors book for the parish of Clayton shall be deemed to continue unaltered until a new jurors book relating to that parish shall come into force.

Jury
service.

69.—(1) Agreements may be made by any councils or other authorities affected by the alteration by this order of any areas or authorities for the adjustment of any property income debts liabilities and expenses so far as they are affected by the alteration and section 62 of the Act of 1888 shall apply to any such adjustment with the following adaptations:—

Provisions
as to adjust-
ments.

- (a) As if in subsections (5) (6) and (7) of that section the expression "council" included any authority affected by this order or by anything done in pursuance of this order; and
- (b) As if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in subsection (6) of the section that subsection empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Minister may sanction; and
- (c) As if the fund or rate specified in any agreement or award of adjustment were substituted for any fund mentioned in the section; and

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(d) As if the following subsection were added to the section :—

“ (8) If it is necessary for the purpose of giving
 “ effect to any agreement or award of adjustment
 “ that a separate rate shall be levied in part only
 “ of a parish the agreement or award may authorise
 “ such sum to be levied in that part as an additional
 “ item of the general rate.”

(2) This article shall not extend to any matter for the adjustment of which provision is made by any other Act or by Part V. of this order.

Books and documents of Clayton Council or Clayton parish.

70.—(1) The agreements between the Corporation and the Clayton Council dated respectively the thirtieth day of September and the twenty-second day of October nineteen hundred and twenty-nine and now in the possession of the Clayton Council shall not be transferred to or be subject to the control of the Corporation.

(2) Save as aforesaid all books and documents belonging to—

- (a) the Clayton Council; or
- (b) the parish of Clayton and all documents directed by law to be kept with the public books writings and papers of that parish (except any book or document relating to ecclesiastical matters);

shall be deposited in such custody as the Corporation may direct.

(3) Any ratepayer of the parish of Clayton shall at all times have the same right of inspection and of making extracts from the books and documents referred to in this article which he would have had if this order had not been made.

Saving for rights of burial &c. or of incumbent or sexton.

71. Nothing in this order shall prejudice or affect—

- (a) any right of burial or of constructing a burial place or of erecting or placing any monument tablet grave-stone or inscription which any person may have acquired prior to the appointed day in relation to any burial ground or cemetery; or
- (b) any right privilege authority or duty which immediately before the appointed day is exerciseable by or attaches to any incumbent or sexton under the Burial Acts 1852 to 1906.

Savings for legal proceedings contracts &c.

72.—(1) No alteration effected by this order shall cause to abate or shall prejudicially affect or prevent the continuance of any action cause of action or proceeding which immediately before the appointed day is pending or existing by or against the Clayton Council or any contract deed bond agreement or

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other instrument (subsisting immediately before the appointed day) entered into or made by that council or their predecessors : A.D. 1930.

Provided that—

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- (a) Any action cause of action or proceeding which immediately before the appointed day is pending or existing by or against the Clayton Council in relation to the Clayton District or any part thereof may be continued prosecuted and enforced by or against the Corporation; and
- (b) Except as in this order otherwise provided all contracts deeds bonds agreements and other instruments (subsisting immediately before the appointed day) entered into or made by the Clayton Council (or their predecessors) in relation to the Clayton District or any part thereof may be continued and enforced as fully and effectually as if instead of that council (or their predecessors) the Corporation had been a party thereto.

(2) All legal proceedings pending immediately before the appointed day may be amended in such manner as may be necessary or proper in consequence of this order.

73. Nothing in this Order shall—

Other
savings.

- (1) restrict the powers of the Secretary of State the Minister or the county council under the Act of 1888 or the Act of 1894;
- (2) affect the powers of the County Council for the division of the parliamentary county into polling districts for parliamentary elections or for the division of the County into polling districts for the election of county councillors or any existing order or scheme for either of those purposes or for naming the polling places at any election; or
- (3) affect the ecclesiastical divisions of any parish or shall (save as in Part VI. of this order expressly provided with respect to certain charities) prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment.

74. This order shall have effect subject to the provisions of the Local Government Act 1929.

Order to have
effect subject to
19 & 20 Geo. 5.
c. 17.

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Order.*

SCHEDULES.

FIRST SCHEDULE.

**CONFIRMATION ACTS REPEALED IN SO FAR AS THEY RELATE TO
THE BRADFORD PROVISIONAL ORDERS THEREBY CONFIRMED.**

Session and Chapter.	Short title.	Order thereby confirmed.
26 & 27 Vict. c. 32.	The Local Government Supplemental Act 1863.	The order relating to Bradford (Yorks) contained in the schedule to the Act.
28 & 29 Vict. c. 41.	The Local Government Supplemental Act 1865 (No. 3).	The order relating to Bradford (Yorks) contained in the schedule to the Act.
31 & 32 Vict. c. lxxxiv.	The Local Government Act 1868 (No. 2).	The order relating to the compulsory purchase of certain lands by the Bradford local board of health contained in the schedule to the Act.
48 & 49 Vict. c. xxix.	The Education Department Provisional Orders Confirmation (Birmingham &c.) Act 1885.	The order relating to the school board for Bradford (Yorks) contained in the schedule to the Act.
50 Vict. c. xv.	The Local Government Board's Provisional Order Confirmation (No. 7) Act 1886.	The order relating to Bradford (Yorks) contained in the schedule to the Act.
52 & 53 Vict. c. lxii.	The Local Government Board's Provisional Orders Confirmation (No. 10) Act 1889.	The order relating to the borough of Bradford (Yorks) set forth in the schedule to the Act.
56 & 57 Vict. c. cxxvii.	The Local Government Board's Provisional Orders Confirmation (No. 6) Act 1893.	The order relating to the borough of Bradford (Yorks) set forth in the schedule to the Act.
57 & 58 Vict. c. cxx.	The Local Government Board's Provisional Orders Confirmation (No. 7) Act 1894.	The Bradford (Yorks) Order 1894.
59 Vict. c. vi.	The Local Government Board's Provisional Orders Confirmation (No. 7) Act 1895 Session 2.	The Bradford (Yorks) Order 1895.
4 Edw. 7. c. cxvi.	The Local Government Board's Provisional Orders Confirmation (No. 5) Act 1904.	The Bradford (Yorks) Order 1904.
5 Edw. 7. c. cix.	The Local Government Board's Provisional Orders Confirmation (No. 14) Act 1905.	The Bradford (Yorks) Order 1905.
4 & 5 Geo. 5. c. cxxxvi.	The Local Government Board's Provisional Orders Confirmation (No. 16) Act 1914.	The Bradford Order 1914.

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Session and Chapter.	Short title.	Order thereby confirmed.
6 & 7 Geo. 5. c. xxvii.	The Local Government Board's Provisional Orders Confirmation (No. 1) Act 1916.	The Bradford Order 1916.
10 & 11 Geo. 5. c. cxii.	The Ministry of Health Provisional Orders Confirmation (No. 5) Act 1920.	The Bradford Order (No. 1) 1920.

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SECOND SCHEDULE.

LOCAL ACTS EXTENDED TO THE CITY.

Session and Chapter.	Short title.
13 & 14 Vict. c. lxxix. -	The Bradford Improvement Act 1850.
17 & 18 Vict. c. cxxiv. -	The Bradford Waterworks Act 1854.
17 & 18 Vict. c. cxxix. -	The Bradford Corporation Waterworks Act 1854.
18 & 19 Vict. c. clii. -	The Bradford Corporation Waterworks Amendment Act 1855.
21 & 22 Vict. c. lxxvi. -	The Bradford Corporation Waterworks Act 1858.
25 & 26 Vict. c. xviii. -	The Bradford Waterworks Act 1862.
29 & 30 Vict. c. cxxxi. -	The Bradford Corporation Act 1866.
31 & 32 Vict. c. cxl. -	The Bradford Waterworks and Improvement Act 1868.
32 & 33 Vict. c. cxxxv. -	The Bradford Waterworks Act 1869.
34 & 35 Vict. c. xciv. -	The Bradford Corporation Gas and Improvement Act 1871.
36 & 37 Vict. c. clxvii. -	The Bradford Improvement Act 1873.
38 & 39 Vict. c. lxxx. -	The Bradford Waterworks and Improvement Act 1875.
41 & 42 Vict. c. cxxxiii. -	The Bradford Water and Improvement Act 1878.
44 & 45 Vict. c. cxxii. -	The Bradford Water and Improvement Act 1881.
48 & 49 Vict. c. cxxiv. -	The Bradford Waterworks and Improvement Act 1885.
50 & 51 Vict. c. cxxxii. -	The Bradford Corporation (Various Powers) Act 1887.
53 & 54 Vict. c. cxxxxi. -	The Bradford Corporation Waterworks Act 1890.
55 & 56 Vict. c. cxxxii. -	The Bradford Corporation Waterworks Act 1892.
60 & 61 Vict. c. cclx. -	The Bradford Tramways and Improvement Act 1897.
62 & 63 Vict. c. clxx. -	The Bradford Tramways and Improvement Act 1899.
63 & 64 Vict. c. cxxvi. -	The Bradford Corporation (Tramways Gas and Various Powers) Act 1900.
1 Edw. 7. c. cci. -	The Bradford Corporation Act 1901.
2 Edw. 7. c. cxiii. -	The Bradford Corporation Act 1902.
3 Edw. 7. c. cxxxiii. -	The Bradford Corporation Act 1903.
10 Edw. 7 & 1 Geo. 5. c. cxvii.	The Bradford Corporation Act 1910.
3 & 4 Geo. 5. c. xevi. -	The Bradford Corporation Act 1913.
15 & 16 Geo. 5. c. cxxi. -	The Bradford Corporation Act 1925.
18 & 19 Geo. 5. c. cxvi. -	The Bradford Corporation Act 1928.

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THIRD SCHEDULE.

*Bradford
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**PART I.—SANITARY CONFIRMATION ACTS EXTENDED TO
THE CITY.**

Session and Chapter.	Short title.	Order thereby confirmed.
47 & 48 Vict. c. ccx.	The Local Government Board's Provisional Orders Confirmation (No. 4) Act 1884.	The order relating to Bradford (Yorks) dated 12th May 1884.
50 Vict. c. xi.	The Local Government Board's Provisional Orders Confirmation (No. 8) Act 1886.	The order relating to Bradford (Yorks) dated 4th June 1886.
50 & 51 Vict. c. lxxxiv.	The Local Government Board's Provisional Orders Confirmation (No. 2) Act 1887.	The order relating to Bradford (Yorks) dated 6th May 1887.
55 & 56 Vict. c. cc.	The Local Government Board's Provisional Orders Confirmation (No. 9) Act 1892.	The order relating to Bradford (Yorks) dated 12th May 1892.
56 & 57 Vict. c. cix.	The Local Government Board's Provisional Orders Confirmation (No. 2) Act 1893.	The order relating to Bradford (Yorks) dated 2nd March 1893.
60 & 61 Vict. c. cxlii.	The Local Government Board's Provisional Orders Confirmation (No. 15) Act 1897.	The Bradford (Yorks) Order 1897.
62 & 63 Vict. c. cxlix.	The Local Government Board's Provisional Orders Confirmation (No. 12) Act 1899.	The Bradford (Yorks) Extension Order 1899.
2 Edw. 7. c. lxxxix.	The Local Government Board's Provisional Orders Confirmation (Housing of Working Classes) Act 1902.	The Bradford (Housing of Working Classes) Order 1902.
5 Edw. 7. c. lxxi.	The Local Government Board's Provisional Orders Confirmation (No. 4) Act 1905.	The Bradford Order 1905.
7 Edw. 7. c. clx.	The Local Government Board's Provisional Orders Confirmation (No. 10) Act 1907.	The Bradford Order 1907.
8 Edw. 7. c. cxlix.	The Local Government Board's Provisional Orders Confirmation (No. 9) Act 1908.	The Bradford Order 1908.
5 & 6 Geo. 5. c. xci.	The Local Government Board's Provisional Orders Confirmation (No. 5) Act 1915.	The Bradford Order 1915.
8 & 9 Geo. 5. c. xlv.	The Local Government Board's Provisional Orders Confirmation (No. 3) Act 1918.	The Bradford Order 1918.
10 & 11 Geo. 5. c. cxiii.	The Ministry of Health Provisional Orders Confirmation (No. 6) Act 1920.	The Bradford Order (No. 2) 1920.
12 & 13 Geo. 5. c. xcvii.	The Ministry of Health Provisional Orders Confirmation (No. 9) Act 1922.	The Bradford Order 1922.

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Session and Chapter.	Short title.	Order thereby confirmed.
13 & 14 Geo. 5. c. xli.	The Ministry of Health Provisional Orders Confirmation (No. 8) Act 1923.	The Bradford Order 1923.
14 & 15 Geo. 5. c. xliii.	The Ministry of Health Provisional Orders Confirmation (No. 1) Act 1924.	The Bradford Order 1924.
18 & 19 Geo. 5. c. lvi.	The Ministry of Health Provisional Orders Confirmation (No. 9) Act 1928.	The Bradford Order 1928.

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PART II.—TRAMWAYS AND TROLLEY VEHICLES CONFIRMATION
ACTS EXTENDED TO THE CITY.

Session and Chapter.	Short title.	Order thereby confirmed.
43 & 44 Vict. c. clxxiii.	The Tramways Orders Confirmation (No. 2) Act 1880	The Bradford Corporation Tramways Order 1880.
46 & 47 Vict. c. cxxxi.	The Tramways Orders Confirmation (No. 1) Act 1883.	The Bradford Corporation Tramways Order 1883.
48 & 49 Vict. c. lxvi.	The Tramways Orders Confirmation (No. 1) Act 1885.	The Bradford and Shelf Tramways Order 1885.
50 Vict. c. xxi.	The Tramways Orders Confirmation (No. 2) Act 1886.	The Bradford Corporation Tramways Order 1886.
51 & 52 Vict. c. lxiv.	The Tramways Orders Confirmation (No. 1) Act 1888.	The Bradford Corporation Tramways Order 1888.
53 & 54 Vict. c. clxxxi.	The Tramways Orders Confirmation (No. 1) Act 1890.	The Bradford Corporation Tramways Order 1890.
5 Edw. 7. c. xciii.	The Tramways Orders Confirmation (No. 1) Act 1905.	The Bradford Corporation Tramways Order 1905.
2 & 3 Geo. 5. c. cxviii.	The Bradford Corporation (Trolley Vehicles) Order Confirmation Act 1912.	The Bradford Corporation (Trolley Vehicles) Order 1912.
13 & 14 Geo. 5. c. xlvii.	The Bradford Corporation (Trolley Vehicles) Order (1922) Confirmation Act 1923.	The Bradford Corporation (Trolley Vehicles) Order 1922.
15 & 16 Geo. 5. c. xi.	The Bradford Corporation (Trolley Vehicles) Order Confirmation Act 1925.	The Bradford Corporation (Trolley Vehicles) Order 1925.
8 & 19 Geo. 5. c. lxvi.	The Bradford Corporation (Trolley Vehicles) Order Confirmation Act 1928.	The Bradford Corporation (Trolley Vehicles) Order 1928.

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FOURTH SCHEDULE.

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ELECTRIC LIGHTING CONFIRMATION ACT NOT EXTENDED
TO THE CITY.

Session and Chapter.	Short title.	Order thereby confirmed.
46 & 47 Vict. c. ccxx.	The Electric Lighting Orders Confirmation (No. 8) Act 1883.	The Bradford Electric Lighting Order 1883.

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